

2021 C L C 1310

[Lahore]

Before Jawad Hassan, J

Haji MUHAMMAD ASIF SEHAR and another----Petitioners

Versus

FEDERATION OF PAKISTAN through Secretary Ministry of Finance Islamabad and 11 others----Respondents

Writ Petition No.29298 of 2021, decided on 5th May, 2021.

Prize Bond Rules, 1999---

---Rr.3 & 4---Constitution of Pakistan, Art.18 & 199---Constitutional jurisdiction of High Court---Prize bonds---Withdrawal of prize bonds from circulation---Cancellation of scheduled draws---Locus standi---Scope---Petitioner impugned notification whereby prize bonds of a certain denomination were withdrawn and scheduled draw was cancelled---Contention of petitioner, inter alia, was that vide impugned notification, petitioner's Fundamental Right to business had been violated and sought direction that the draw be held--Validity---Petitioner had no locus standi and per R.3 of Prize Bond Rules, 1999, no person other than authorized entities, could engage in business of prize bonds---No Fundamental Right had been violated by impugned notification and per R.3 of the Prize Bond Rules, 1999, it was sole prerogative of Federal Government to withdraw, substitute or amend any rule of policy---Petitioner was therefore not an aggrieved person and as such Constitutional petition was not maintainable---Constitutional petition was dismissed, in circumstances.

Mahmood Akram and others v. Government of Pakistan and others 2001 CLC 608; Mian Fazal Din v. Lahore Improvement Trust, Lahore PLD 1969 SC 223; Montgomery Flour and General Mills Ltd. Montgomery v. Director, Food Purchases, West Pakistan and others PLD 1957 (W.P) Lahore 914; Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO to Chief Justice and others 2014 SCMR 122; Hafiz Hamadullah v. Saifullah Khan and others PLD 2007 SC 52; N.W.F.P. Public Service Commission and others v. Muhammad Arif and others 2011 SCMR 848 and Judicial Review of Public Actions pp.977 & 980 rel.

Anwar Ali Sangha for Petitioner.

Zahid Sikandar, Assistant Attorney General on Court's Call.

ORDER

JAWAD HASSAN, J.----Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the

"Constitution"), the Petitioners have made following prayer:

"A direction may very kindly be passed to the Respondents to hold draw which was scheduled to be held on today i.e. 02.05.2021 and if not possible on 02.05.2021 the new draw of National Prize Bond with the denomination of Rs.7500/- may kindly be held subsequent to 02.05.2021 within a period of one week as is convenient to the Respondents".

2. Learned counsel submitted that the Petitioners are doing business of sale and purchase of Prize Bonds and for this purpose they have invested huge amount. He stated that the grievance of the Petitioners is that through Notification dated 28.04.2021, the Respondent No.1 has withdrawn the prize bond denomination of Rs.7500/- and stopped its draw which was to be held on 02.05.2021. He argued that by issuing Notification, the fundamental rights of trade and business of the Petitioners have been violated.

3. On the other hand learned Law Officer submitted that the Petitioners have no locus standi to file this petition being not aggrieved persons, therefore, this petition is not maintainable.

4. Arguments heard. Record perused.

5. The case of the Petitioners is that they are doing the business of sale and purchase of Prize Bonds but the Notification issued by the Respondent No.1 has adversely affected their fundamental rights. From the prayer made by the Petitioners, it is quite obvious that they are seeking directions to the Respondents to hold draw of National Prize Bond with denomination of Rs.7500/- and have not challenged any Act, Rule or Notification. It is observed that the sale of National Prize Bonds is regulated through statutory rules and orders promulgated by the Federal Government. The sale/encashment of these prize bonds is governed under SROs. Under Rule 3 of the Prize Bonds Rule, 1999 (the "Rules"), the rules authorized the sale/encashment of these prize bonds by the State Bank of Pakistan, the Schedule Banks, National Saving Centers and also the Head Post Offices. No other person/agency, unless specifically authorized under these rules, is allowed to undertake business of sale/purchase of prize bonds. In the case in hand, the Petitioners have not brought on record any a document with regard to such authorization for doing business. This Court in "Mahmood Akram and others v. Government of Pakistan and others" (2001 CLC 608) held that "neither any dealer was permitted to sell the prize bonds nor the factional sale or purchase of the prize bond was permissible". It is well settled principle of law that the Constitution does not provide any protection to a business or trade which inherently is illegal, unlawful or injurious to public at large. A specific question was put to the learned counsel for the Petitioners how the Petitioners are aggrieved of by the Notifications because they have not challenged the same and only sought directions against the Respondents, he could not submit any satisfactory reply rather reiterated the contents of the petition. The only reason mentioned by the Petitioner in the petition is that the Notifications are adversely affecting them which will deprive them from their fundamental rights. This contention of the Petitioners is illogical. Nowhere from the record, it is established that the Petitioners are aggrieved of by the Notifications or their fundamental rights have been infringed. The Petitioners, through the instant petition has invoked the constitutional jurisdiction of this

Court under Article 199 of the Constitution, therefore, they have to establish that their legal or fundamental right guaranteed under the Constitution have been violated. Similarly, they have to prove their locus standi to seek directions under the denial of their legal rights, if any.

6. It is sine qua non for initiation of proceedings under Article 199 of the Constitution that the Petitioners should have a locus standi to institute the proceedings or in other words the Petitioners should be an aggrieved party from the action of the Respondents. Pivotal judgment of the apex Court on this issue is "Mian Fazal Din v. Lahore Improvement Trust, Lahore" (PLD 1969 SC 223) and the Lahore High Court titled "Montgomery Flour and General Mills Ltd. Montgomery v. Director, Food Purchases, West Pakistan and others (PLD 1957 (W.P) Lahore 914) wherein it was observed that for a person to have locus standi to initiate a petition for issuance of writ, he must have some right in the matter and he need not have a right in that strict sense of the term which is provided in Article 170 of the Constitution. In the case titled "Dr. Imran Khattak and another v. Ms. Sofia Waqar Khattak, PSO to Chief Justice and others (2014 SCMR 122) the Hon'ble Supreme Court of Pakistan held as follows:

"It would exercise such jurisdiction under Article 199(1)(a)(i), (ii) and (c) on the application of an aggrieved person while under 199(1)(b)(i) (ii) on the application of any person whether aggrieved or not, and not on an information or on its own knowledge. In the case of "Tariq Transport Company, Lahore v. Sargodha Bhera Bus Service and others" (PLD 1958 SC (Pak) 437), this Court held that a High Court was not competent merely on an information or on its own knowledge to commence certiorari proceedings or other proceedings of a similar nature under Article 170 of the Constitution of Islamic Republic of Pakistan, 1956. In the case of "Fazl-e-Haq, Accountant General, West Pakistan v. The State" (PLD 1960 SC (Pak) 295), this Court reiterated the view by holding that the extraordinary jurisdiction relating to a writ could only be exercised by the High Court when moved by a party whose legal rights have been denied"

7. Moreover, in "Hafiz Hamadullah v. Saifullah Khan and others" (PLD 2007 SC 52) the apex Court held as follows:

"With regard to the first objection it may be noted that under Article 199(1)(a) of the Constitutional jurisdiction of the High Court can be invoked by an aggrieved person which denotes a person who has suffered a legal grievance, against whom a decision has been pronounced which has wrongfully deprived him or wrongfully refused him something which he was legally entitled to. It is also the requirement that the person invoking the constitutional jurisdiction under Article 199 of the Constitution has to establish that any of his legal or fundamental right guaranteed under the Constitution has been violated resulting in legal loss"

8. Further, in "N.W.F.P. Public Service Commission and others v. Muhammad Arif and others" (2011 SCMR 848) it was served as follows:

"The right which is the foundation of an application under Article 199 of the

Constitution is a personal and individual right. The legal right may be a statutory right or a right recognized by the law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justiciable right in existence, to give jurisdiction to the High Court in the matter. Unless whatever right personal or otherwise, on which the application is based is established, no order can be issued under Art. 199."

9. In view of the above judgments of Hon'ble Supreme Court of Pakistan and from the facts of the case, it is evident that the Petitioners are not aggrieved persons. In fact, Notifications were issued by the Respondent No.1 in terms of sub-rule (1) of Rule 4 of the Rules which is the sole prerogative of the Government to withdraw, substitute or amend any rule or policy. Hon'ble Mr. Justice (R) Fazal Karim in his book "Judicial Review of Public Actions" has elaborated the distinction between "Aggrieved Party" and "Aggrieved Person" at page-977 Volume-2 which reads as follows:

"Distinction between "Aggrieved Party" and "Aggrieved Person"

It will be noticed that sub-clause (a) of clause (1) of Article 199 of the Constitution uses the expression "aggrieved party" while sub-clause (c) of clause (1) of that Article uses the expression "aggrieved person". On general principle, when the Legislature uses two different expressions, the intention is to convey different meanings. The word "party" can assume importance in cases in which there had been proceedings under the relevant statute to which the applicant under Article 199 was not a party, as it did in *Haji Adam v. Settlement and Rehabilitation Commissioner*. But the word "party" as used in Article 199, clause (1)(a) means one who is competent to maintain an action, and a person not a Party to the proceeding under the relevant statute, can seek relief under Article 199, if he shows that the decision is directed against him or his property in the sense that the enforcement of the decision would involve special, immediate and in its effect a direct injury to his interest " (*Tariq Transport Company Case PLD 1958 SC (Pak) 437*).

Similarly at page-980 of the "Judicial Review of Public Actions" Locus Standi is elucidated in the following terms:

"Locus Standi is a Question for Decision, not of Discretion.

The question whether an applicant is or is not an aggrieved party or person within the meaning of Article 199 is not a matter in the discretion of the Court. "The matter is one for decision, a mixed decision of fact and law, which the Court must decide on legal principles" (Lord Wilberforce in *IRC v. Fed of Self Employed* (1981) 2 All ER 93).

Object of this Provision

The right to be satisfied about the applicant's locus standi, said Lord Scarman in *IRC v. Fed. of Self Employed* [(1981)2 All ER 93] enables the Court to prevent abuse by busy bodies, cranks and other mischief-makers. It is as Lord Wilberforce said in the same case, an important safeguard against the Court being flooded and public bodies

harassed by irresponsible applications."

10. For what has been discussed above, it is evident that the Petitioners are not aggrieved persons and have no locus standi to file this petition. Therefore, the instant petition is not maintainable and is hereby dismissed in limine.

KMZ/M-95/L

Petition dismissed.